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Legal Notice & Procedural Compliance Brief

1. Document Summary

Category: Police & Criminal Process

Sub-type: Bank account freezing order in connection with FIR investigation

Assessment: This is a police directive from the Economic Offences Wing freezing a bank account as part of criminal investigation into cheating and criminal breach of trust allegations under an FIR, which falls within police investigative powers and criminal process.

Severity of Procedural Compliance Violations

 **Serious Concerns**



2 check(s) could not be verified from the information given.

2. Procedural Compliance Findings

Blanket freeze under 106/107 BNSS restricted to disputed amount [High Court trend]

Status: **Non-Compliant**

Entire account frozen. High Courts (Karnataka, Kerala, Bombay) have held blanket freezes disproportionate.

Seizure/freeze intimated forthwith to Magistrate [S.106 BNSS]

Status: **Cannot Determine**

magistrate intimation not clearly stated.

Attachment/freeze authorized via Section 107 BNSS court intimation

Status: **May be Non-Compliant**

No legal section was cited to justify this freeze at all. Account/property attachment is supposed to proceed under Section 107 BNSS with Magistrate intimation. A freeze effected without invoking this process, on bare police request alone, may be illegal.

Account holder intimated of freeze

Status: **Cannot Determine**

Account holder intimation status unclear.

Overall Assessment: 2 defect(s) found or suspected in freeze procedure. Freeze may be legally vulnerable.

3. Missing or Unclear Information

- No deadline for response or compliance confirmation is explicitly stated

- No supporting documents or evidence are referenced or claimed to be attached
- No legal authority or section under which the freezing order is issued is cited
- Underlying facts are vague: no specific dates of alleged cheating/breach of trust, no transaction details, no complainant name
- Amount breakdown is missing: only total alleged loss (Rs. 1,85,000/-) is stated without itemization or calculation
- No clarity on whether this notice is issued under a court order or police authority alone
- Account number is partially masked (XXXXXXXXXX8812), making verification difficult

5. Documents to Gather

- Copy of the FIR (if registered)
- Any written notice received from police (Section 35/41A, Section 94/91)
- Identity proof
- Names and badge numbers of investigating officers, if known
- Any prior correspondence with the police station

This brief is generated by an automated analysis tool and does not constitute legal advice. Findings marked 'May be Non-Compliant' are inferences drawn from the absence of information in the source document, not confirmed violations. Consult a qualified advocate before taking any legal action.